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Case Number: 26STCV06246 Hearing Date: August 19, 2026 Dept: 510

No.

7 - Benjamin Ramon Eves v. Wal-Mart Associates, Inc., et al.

Defendants'

Demurrer to Plaintiff's First Amended Complaint

Defendants

Wal-Mart Associates, Inc. ("Wal-Mart"), and Liz Winn, Dulce Burgess, Dany Amaya, and Ana Guerra ("Individual Defendants") demur to Plaintiff Benjamin Ramon Eves's sixth, seventh, eighth, and ninth causes of action in his first amended complaint ("FAC"). Specifically, the Individual Defendants demur to the sixth, seventh, and eighth causes of action; Defendant Wal-Mart demurs to the ninth cause of action.

Sixth

Cause of Action: Failure to Allow Inspection of Employment Records (Labor Code § 1198.5)

The Individual Defendants demur to

Plaintiff's sixth cause of action for failure to allow inspection of employment records under Labor Code section 1198.5. They argue that Plaintiff cannot impose individual liability for violation of this Labor Code section—only an employer can be held liable.

The

Court agrees. Labor Code section 558.1 is the primary vehicle through which liability for violations of the Labor Code is imputed to individual employees. The statute provides: "Any employer

or other person acting on behalf of an employer, who violates, or causes to be violated, any provision regulating minimum wages or hours and days of work in any order of the Industrial Welfare Commission, or violates, or causes to be violated, Sections 203, 226, 226.7, 1193.6, 1194, or 2802, may be held liable as the employer for such violation.” (Lab. Code, § 558.1(a).) Critically, Labor Code section 1198.5 is not included in the list of covered provisions, likely because this section does not address regulating wages or hours, but allowing inspection of personnel records.

Because Plaintiff does not adequately plead a basis for imposing individual liability on the Individual Defendants for a violation of Labor Code section 1198.5, nor is the Court aware of any, the Individual Defendants' demurrer as to this cause of action is sustained without leave to amend.

Seventh

Cause of Action: Failure to Reimburse Business Expenses (Labor Code § 2802)

The Individual Defendants also demur to Plaintiff's seventh cause of action for failure to reimburse business expenses under Labor Code section 2802. Here, Labor Code section 2802 is included in the list of statutes under which individual liability can be imputed under Labor Code section 558.1(a). However, Defendants argue that the claim still fails because the FAC does not sufficiently allege that the Individual Defendants are managing agents as required under Labor Code section 558.1, subsection (b). (See Lab. Code, § 558.1(b) [“For purposes of this section, the term ‘other person acting on behalf of an employer’ is limited to a natural person who is an owner, director, officer, or managing agent of the employer”].)

The

Court agrees. The FAC only alleges, in a conclusory manner, that each Individual Defendant “was employed by Defendant WAL-MART ASSOCIATES, INC. as a People Lead and was an owner, director, officer, or managing agent of Defendant WAL-MART ASSOCIATES, INC. within the meaning of Labor Code §558.1.” (FAC, ¶¶ 3-6.) There are no factual allegations demonstrating how each Individual Defendant exercised substantial independent authority or judgment over corporate policy, as required to be a “managing agent.” (See *White v. Ultramar, Inc.* (1999) 21 Cal.4th 563, 573.)

Defendants also argue that the FAC lacks necessary factual allegations showing the Individual Defendants personally participated in establishing or enforcing reimbursement policies. The Court agrees. A person subject to section 558.1 can be liable in two ways. He or she “must either have been personally involved in the purported violation of one or more of the enumerated provisions; or, absent such personal involvement, had sufficient participation in the activities of the employer, including, for example, over those responsible for the alleged wage and hour violations, such that the [person] may be deemed to have contributed to, and thus for purposes of this statute, ‘cause[d]’ a violation.” (Usher v. White (2021) 64 Cal.App.5th 883, 896–897.)

Here, the FAC contains no allegations showing that every Individual Defendant participated in the decision not to reimburse Plaintiff’s business expenses, or otherwise participated in the employer’s general practice of reimbursing employees for business expenses. The FAC alleges that Wal-Mart failed to reimburse Plaintiff for personal cellphone expenses—not the Individual Defendants. (FAC, ¶ 53.)

The Individual Defendants’ demurrer as to this cause of action is sustained with leave to amend.

Eighth

Cause of Action: Unfair Competition

Plaintiff does not allege sufficient facts to state a claim for violation of unfair competition law against the Individual Defendants. “To bring a UCL claim, a plaintiff must show either an (1) ‘unlawful, unfair, or fraudulent business act or practice,’ or (2) ‘unfair, deceptive, untrue or misleading advertising.’ ” (Adhav v. Midway Rent A Car, Inc. (2019) 37 Cal.App.5th 954, 970.) “ ‘Unlawful’ conduct includes any business practice or act forbidden by local, state or federal statutes or by regulations or case law. [Citation].” (Ibid.) The unfair competition law “ ‘borrows’ violations from other laws by making them independently actionable as unfair competitive practices.” (Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1143.)

Defendants argue that Plaintiff’s claim fails because it is predicated on his statutory claims for violation of the Labor Code alleged against the Individual Defendants. Therefore, because

Plaintiff fails to state sufficient facts for his Labor Code claims, the derivative unfair competition law claim necessarily fails. The Court agrees. Plaintiff's argument that his causes of action based on violations of FEHA provide a separate, statutory predicate for the unfair competition law claim is unavailing—the FEHA claims are only brought against Wal-Mart, not the Individual Defendants.

The Individual Defendants' demurrer as to this cause of action is sustained with leave to amend.

Ninth

Cause of Action: Age Discrimination

Plaintiff alleges sufficient facts for this cause of action. "Generally, the plaintiff must provide evidence that he or she (1) was a member of a protected class; (2) was qualified for the position sought or was performing competently in the position already held; (3) suffered an adverse employment action, such as termination, demotion, or denial of an available job; and (4) some other circumstance suggests discriminatory motive." (Brown v. Los Angeles Unified School District (2021) 60 Cal.App.5th 1092, 1105.) A plaintiff generally must allege "facts from which discriminatory intent [may] be inferred." (Brown v. Los Angeles Unified School District (2021) 60 Cal.App.5th 1092, 1107.)

Defendant

Wal-Mart demurs to this cause of action, challenging the fourth element. A plaintiff must "show that discrimination was a substantial motivating factor" for the adverse employment action. (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 232.) Here, the FAC alleges that Defendant Amaya, the Asset Protection Operations Coach, would consistently move Plaintiff to different workstations to test his physical limitations, an act which was "motivated in part by Plaintiff's age and visible physical limitations." (FAC, ¶ 21.) The FAC further alleges that "Younger employees without disabilities or workers' compensation claims were not subjected to similar treatment regarding leave time and scheduling confusion." (Id., ¶ 51.) It alleges "Plaintiff's age was a substantial motivating factor in Employers' decision to discriminate against him and ultimately terminate his employment." (Id., ¶ 151.) Accepting these allegations as true, which the Court must do on demurrer, Plaintiff alleges sufficient facts to plead causation for age discrimination.

Defendant Wal-Mart's demurrer as to this cause of action is overruled.

Disposition

The

Individual Defendants' demurrer is sustained with 21 days' leave to amend as to the seventh and eighth causes of action. It is sustained without leave to amend as to the sixth cause of action.

Defendant

Wal-Mart's demurrer to the ninth cause of action is overruled. The Court hereby orders Defendant Wal-Mart to file its answer within 21 days.